

25LBCV03083 25LBCV03083

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS28%2C08%2F25%2F2026

Source SHA-256: 2e6dc52b6f4d7a7f9bd61aa92b954ad0a06f428675001118bb033c98f95130bb

Case Number: 25LBCV03083 Hearing Date: August 25, 2026 Dept: S28

BACKGROUND

This is an employment action. Plaintiff

Kristal Johnson ("Plaintiff") sued Defendants Long Beach Community College District ("LBCCD" or "Defendant") and Erik Johnson ("Johnson") on November 10, 2025. In Plaintiff's initial complaint, she asserted three claims pursuant to the Fair Employment and Housing Act (FEHA), one claim for whistleblower retaliation, and one for wrongful termination in violation of public policy. She has since dismissed her latter two claims; she still asserts claims captioned (1) Sexual Harassment in Violation of FEHA, (2) Retaliation in Violation of FEHA, and (3) Failure to Prevent Discrimination and Harassment in Violation of FEHA. Plaintiff's first claim is directed to "ALL Defendants", the latter two to "All Employer Defendants." Although "Employer Defendants" is not defined in the complaint, it appears from the underlying factual allegations that the term refers only to LBCCD, not to Johnson.

On February 17, 2026, the Court sustained LBCCD's demurrer to the Complaint in its entirety with 30 days' leave to amend, and denied the motion to strike as moot.

On March 18, 2026, Plaintiff filed the operative first-amended complaint ("FAC").

On April 21, 2026, LBCCD demurred to all of the causes of action in the FAC.

On June 5, 2026, Plaintiff filed opposition.

On June 11, 2026, Defendant filed a reply.

On July 17, 2026, Defendant Johnson filed a joinder to the Demurrer.

DISCUSSION

Applicable

Law

Code of Civil Procedure (“CCP”) section 430.10 subdivision (e) is grounds for a demurrer when the complaint fails to state facts sufficient to constitute a cause of action. CCP § 430.10(f) is grounds for a demurrer when the complaint is uncertain (vague and ambiguous). For purposes of ruling on a demurrer, material facts properly pleaded in the complaint must be taken as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 491.)

A demurrer may challenge only defects that appear on the face of the pleading or from matters which are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 31; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; California Practice Guide, Civil Procedure Before Trial, ¶7:8 (The Rutter Group 2024).)

The function of a demurrer is to test the legal sufficiency of a complaint, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.*, supra, 116 Cal.App.4th at 994; *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388; *SJJC Aviation Services, LLC v. City of San Jose* (2017) 12 Cal.App.5th 1043, 1051-1052; California Practice Guide, Civil Procedure Before Trial, ¶7:5 (The Rutter Group 2024).) Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879-80.)

“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed (Code Civ. Proc., §§ 430.30, 430.70). The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747;

Accord *McKenney v. Purepac Pharmaceutical Co.* (2008) 162 Cal.App.4th 72, 79.) When considering demurrers, courts read the allegations liberally and in context. (*McKenney*, supra, 167 Cal.App.4th at 77; *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.)

“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Analysis

The operative FAC alleges that Plaintiff worked as a custodian for LBCCD from March 18 to August 14, 2025. (FAC, ¶¶ 13, 38, 40.) Johnson was Plaintiff’s supervisor “at the beginning of her employment and towards the end of her employment[.]” (*Id.*, ¶ 16.) Johnson directed “unwelcome comments based on sex and/or verbalized sexual conduct, and unwelcome advances” toward Plaintiff during her employment. (*Id.*, ¶ 13.) Specifically:

.
Johnson on one occasion referred graphically to other male employees’ sexual inclinations or preferences, stating “[a]ll these guys here only like ass, titties, and pussy” (*id.*, ¶ 18);

.
Johnson asked Plaintiff on a date, to which she did not respond (*id.*, ¶ 24);

.
Johnson referred to Plaintiff repeatedly as his “work wife”, which made her “extremely uncomfortable” (*id.*, ¶ 25); and

.
Johnson requested Plaintiff put on a sweater, using language that suggested she should cover her breasts (*id.*, ¶¶ 20-22).

On June 12, 2025, a different supervisor

informed Plaintiff that Johnson had requested she be transferred to another area custodial area supervised by Mark Stuart. (Id., ¶ 27.) Five days later, Plaintiff submitted a complaint regarding Johnson's conduct to LBCCD's Human Resources Department. (Id., ¶ 30.) After submitting this complaint, Plaintiff started to report to Mr. Stuart but remained in the same custodial area that is supervised by Defendant Johnson. (Id., ¶ 31.)

On June 25, 2025, Defendant's Director for Title IX and Compliance Programs, Cynthia Nuñez ("Ms. Nuñez"), emailed Plaintiff acknowledging receipt of Plaintiff's complaint and sought to schedule a meeting with Plaintiff. (Id., ¶ 35.) Plaintiff met with Ms. Nuñez who said that Mr. Stuart will reach out to Plaintiff so they can have a meeting with Plaintiff, Ms. Nuñez herself, Mr. Garcia, and Mr. Garcia's supervisor, to talk about Plaintiff's complaints against Defendant Johnson. (Id., ¶ 37.) Plaintiff never heard back from Ms. Nuñez after this meeting. (Ibid.)

On August 14, 2025, LBCCD released Plaintiff from her probationary work period and terminated her employment. (Id., ¶ 38.) She submitted a complaint to the Civil Rights Department on November 10, 2025; the CRD issued her a right to sue letter, and she subsequently filed this action. (Id., ¶ 48.)

A. First

Cause of Action: Sexual Harassment in Violation of FEHA

"The elements [of a sexual harassment cause of action] are: (1) plaintiff belongs to a protected group; (2) plaintiff was subject to unwelcome sexual harassment; (3) the harassment complained of was based on sex; (4) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior." (Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 608.) To prevail on a FEHA sexual harassment claim, a plaintiff must plead and prove "that the conduct complained of was severe enough or sufficiently pervasive to alter the conditions of employment and create a work environment that qualifies as hostile or abusive to employees because of their sex." (Lyle v. Warner Brothers Television Productions (2006) 38 Cal.4th 264, 278-279 (Lyle), italics omitted.) "[E]vidence of hostile, sexist statements is relevant to show discrimination on

the basis of sex. [Citations.] However, while the use of vulgar or sexually disparaging language may be relevant to show such discrimination, it is not necessarily sufficient, by itself, to establish actionable conduct.” (Id., at p. 281.)

Defendant argues that Plaintiff has not alleged sufficient facts to show that the conduct described in her FAC is sufficiently severe or pervasive as to create a hostile work environment. (Demurrer, p. 7.) Defendant asserts that Plaintiff’s allegations that Mr. Johnson commented to her on one single occasion that “all these guys here only like ass, titties, and pussy,” while crude, was not directed toward Plaintiff or women in general. (FAC ¶ 18.) Similarly, Defendant contends that Plaintiff’s allegation that Mr. Johnson informed her on a single occasion that other employees had allegedly insinuated that they were uncomfortable with Plaintiff’s breasts being “visible” or “apparent” does not constitute “harassing conduct.” (FAC ¶ 22.) Defendant argues that Plaintiff’s allegation that Mr. Johnson asked her on a single occasion, in what appears to be a joking manner, what her name was and whether he could take her out for a date, was not sufficient nor pervasive enough as to alter the conditions of her employment. (FAC ¶ 24.) Finally, Defendant asserts that Plaintiff’s allegation that Mr. Johnson referred to her as his “work wife” on various occasions while on the phone with his girlfriend, is neither threatening nor severe. (FAC ¶ 25.)

Here, the Court finds that Plaintiff has alleged conduct sufficiently severe or pervasive to constitute a hostile work environment. The FAC alleges the same four incidents as the Complaint. However, Plaintiff has now included additional facts sufficient to show that the statements were not merely rude and crass, but actually targeted toward Plaintiff and expressly derogatory or demeaning. (Cf. *Fuentes v. Autozone* (2011) 200 Cal.App.4th 1221, 1235 [liability based on supervisor’s demands that plaintiff “display her body to customers” and spreading rumors of sexually transmitted infection, distinguishing Lyle’s “sexually coarse and vulgar language ... not aimed at the plaintiff”].)

As to the first of Johnson’s four statements, “[a]ll these guys here only like ass, titties and pussy,” the FAC contains additional allegations which sufficiently state that the comment was made only to Plaintiff and in an environment where it could be reasonably interpreted as threatening, derogatory and demeaning. The FAC now alleges that “Defendant Johnson pulled Plaintiff to a booth similar to

a ticket booth where it was dark and secluded. Plaintiff was the only woman working there on that night. Johnson looked at Plaintiff, stood close to her, and said, 'All these guys here only like ass, titties and pussy.' After he said all of that, he left. These sexualized remarks referring to a woman's body and/or body parts left Plaintiff extremely offended, uncomfortable, and unsafe in a place where the employees are predominantly male. Throughout her employment with Defendant, Plaintiff never heard Defendant Johnson make sexual remarks to male employees." (FAC, ¶ 18.)

As to the

second of Johnson's four statements, the Complaint alleged that Johnson approached Plaintiff and told her that other employees, Rudolph and Tony, informed him that Plaintiff took her sweater off, and Johnson then said, "[P]ut your girls away." The FAC now contains many additional allegations surrounding this interaction which sufficiently allege that the comment was made directly to and about Plaintiff, specifically about her breasts, in a derogatory and demeaning way: "Plaintiff went to pick up her radio at the office and had to lean over to get it. Defendant Johnson, who was with male employees Rudolph and Tony at the time, leered at Plaintiff and her breasts, and told Plaintiff that other employees said, 'put your girls up,' Plaintiff then hurriedly walked out the door. To Plaintiff's understanding, 'put your girls up' referred to her breasts. Later that same night, Defendant Johnson approached Plaintiff. Defendant Johnson told Plaintiff that Rudolf and Tony told him that she had taken her sweater off, insinuating that they were complaining about her breasts being visible or apparent. Plaintiff clarified to Defendant Johnson that she never took her sweater off as it was cold and there were other employees who saw her wearing her sweater. Plaintiff likewise said that even if she took her sweater off, she was wearing a big, loose shirt underneath, which would not make her breasts visible or apparent. Plaintiff later spoke with Rudolph and Tony about the incident, but both denied that they reported Plaintiff about not having her sweater on. Thus, it became clear to Plaintiff that it was only Defendant Johnson who constantly made unwelcome comments or references about her breasts, which in turn made it intimidating and difficult for Plaintiff to work in a place where most fellow employees are males." (FAC, ¶¶ 20-23.)

As to the fourth

of Johnson's four statements where the Complaint alleged that he referred to Plaintiff as his "work wife" on a single occasion, the FAC now alleges that "[o]n multiple occasions, whenever Defendant Johnson was on the phone speaking with his girlfriend, Defendant Johnson referred to Plaintiff as his 'work wife'

which made Plaintiff extremely uncomfortable. Every time Plaintiff walked in, and Defendant Johnson was conversing with his girlfriend, he would tell his girlfriend, 'this is my work wife'. Plaintiff would walk out of the room immediately as she found this offensive and quite uncomfortable." (FAC, ¶ 25.)

All of the

interactions alleged are sufficiently derogatory and demeaning to Plaintiff, save for the third incident which shows an unwelcome but not derogatory romantic advance, which was not repeated after Plaintiff's rejection. These interactions taken together show a pervasive pattern of behavior on Johnson's part. The FAC thus states a claim for actionable sexual harassment under the FEHA

Therefore, the

demurrer to the first cause of action in the FAC is OVERRULED.

B. Second

Cause of Action: Retaliation in Violation of the FEHA

A plaintiff asserting a FEHA

retaliation claim must plead and prove "(1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042.)

Defendant

argues that the FAC fails to state facts sufficient to constitute a cause of action for retaliation as Plaintiff

alleges in a conclusory manner that her complaint regarding sexual harassment was a substantial factor in her termination. (FAC ¶ 46.) (Demurrer, p. 8.)

Here,

the FAC now alleges sufficient facts

to link Plaintiff's complaint about Johnson's conduct to her firing: After making her report, "Plaintiff was told by fellow employees that Defendant Johnson continued to talk to other employees about her, telling them that Plaintiff was spreading lies about him. After Plaintiff submitted her complaint, Defendant Johnson would not talk to her at all or acknowledge her

presence. On July 14, 2025, Plaintiff went to the Human Resources Office and reiterated her complaints against Defendant Johnson to Ms. Nuñez [Defendant's Director for Title IX and Compliance Programs]. On or around August 14, 2025, Mr. Stuart told Plaintiff that there would be a meeting in person with her and Caroline Chretien, Executive Director for Classified Human Resources. At that meeting, Mr. Garcia, Mr. Stuart, and Ms. Chretien were present. Plaintiff went into this meeting thinking that it would be about her complaints against Defendant Johnson. However, Plaintiff was surprised to learn in this meeting that she was being terminated effective immediately. During the termination meeting, Plaintiff asked the reason her employment was being terminated, but she was not given any answer. Plaintiff was terminated a few days before her probation ended, which would have been on August 18, 2025. Plaintiff alleges that no meeting with or investigation by the Human Resources Office was conducted regarding Plaintiff's complaints against Defendant Johnson. A couple of weeks after her termination, Plaintiff learned that one of two other female custodial employees had also submitted a complaint against Defendant Johnson. Plaintiff learned that Defendant Johnson was terminated on or about September 1, 2025. Prior to her termination, Plaintiff was never written up by either Defendant Johnson or Mr. Stuart. In fact, Mr. Stuart complimented Plaintiff and on one occasion said to Plaintiff, 'you did a very good job.' Plaintiff continued to come to work early every day and worked overtime most of the time. Thus, Plaintiff cannot think of any other reason why her employment would be terminated other than in retaliation for the complaint of sexual harassment which she submitted to the Human Resources Office of Defendant LBCCD." (FAC ¶¶ 33-45.)

The FAC sufficiently alleges a nexus between Plaintiff's report about Johnson's conduct and her firing by stating facts showing that she complained about Johnson, he was speaking negatively about her to other employees, her complaints were not investigated, and she was terminated without reason after receiving positive feedback on her work performance.

Thus, Defendant's demurrer to the second cause of action is OVERRULED.

C. Third

Cause of Action: Failure to Prevent Discrimination or Harassment

The elements of a cause of action for failure to prevent harassment or retaliation are: (1) actionable discrimination or harassment by

employees or nonemployees; (2) defendant's legal duty of care toward plaintiff (i.e., defendant is the plaintiff's employer); (3) breach of that duty (i.e., failure to take all reasonable steps necessary to prevent discrimination and harassment from occurring); (4) legal causation; and (5) damages to plaintiff. (Trujillo v. North County Transit District (1998) 63 Cal.App.4th 280, 287, 289; Bradley v. Department of Corrections & Rehabilitation (2008) 158 Cal.App.4th 1612, 1630; Gov. Code, § 12940.) Plaintiff's claim for failure to prevent harassment or retaliation depends entirely on the sufficiency of the underlying causes of action. (See Dickson v. Burke Williams Inc. (2015) 234 Cal.App.4th 1307, 1314-1317.)

Defendant contends

that while Plaintiff alleges that the District failed to "take all reasonable steps to protect Plaintiff from Defendant Johnson" she also alleges that she was assigned to a new supervisor after lodging her complaint with the District. (FAC ¶ 31.) Defendant argues that Plaintiff has not pleaded facts to show that the alleged harassment continued after her initial complaint, nor that the District was on notice about the alleged harassment prior to her complaint.

Here, Plaintiff has not sufficiently

alleged that Defendant

failed to take all reasonable steps to protect Plaintiff from Johnson. The FAC does not sufficiently allege that Defendant failed to prevent harassment once it became aware, instead alleging that Plaintiff was moved to another supervisor and encouraged to make a formal complaint to human resources and Defendant's Title IX Director. While the FAC does state that after being assigned a new supervisor Plaintiff remained in the same custodial area that is supervised by Defendant Johnson and continued to work in the same physical area as Defendant Johnson, this alone is not sufficient. Defendant is correct that it would be impossible for Defendant to prevent harassment of which it was unaware and based on Plaintiff's allegations, after she lodged her complaint with the District, Mr. Johnson "would not talk to her at all or acknowledge her presence." (FAC ¶ 34.) This indicates that Plaintiff's complaints resulted in a cessation of Johnson's contact.

Thus, Defendant's demurrer to the third cause of action

is SUSTAINED with leave to amend. Plaintiff is cautioned that this will be the last opportunity to amend.

CONCLUSION

Defendant LBCCD's Demurrer to the First

Amended Complaint is OVERRULED as to the first and second causes of action, and
SUSTAINED with twenty (20) days leave to amend as to the third cause of action.